What you can say. What ends the company.

Storm restoration is one of the most heavily policed sales jobs in Texas. Three rules cover almost everything. Learn them cold.

RULE 1: THE DEDUCTIBLE IS THEIRS. ALWAYS.

Texas Business & Commerce Code § 27.02. If a contract is $1,000 or more and will be paid wholly or partly from insurance proceeds, it is an offense to pay, rebate, waive, absorb, or help the homeowner avoid their deductible. Advertising that you'll do it is also an offense. Reported as a Class B misdemeanor.

> **Never say:** "we'll waive it" · "we'll cover it" · "we'll work with you on it" · "we'll build it into the estimate" · "don't worry about the deductible" · "no out of pocket."

> **Say instead:** "Your deductible is yours to pay. That's state law, and anybody who offers to eat it is telling you they'll break it. If paying it at once is the problem, there are financing options we can point you to."

The required deductible notice must appear on the contract in at least 12-point bold type. It's already on our agreement. Point to it and read it out loud. it builds more trust than anything else you'll say.

Financing the deductible is legal. Not collecting it is not.

We finance deductibles **in house**, which is a real edge: most shops hand the homeowner to a third-party lender. Say so. What makes it legal is that the homeowner pays the full deductible over time. If we financed it and then quietly stopped collecting, that is a waiver and the same offense as writing it off at the door.

> **Say:** “We finance it ourselves at zero interest, so you’re not applying to a bank and you’re not paying extra for the time. You still pay every dollar of your deductible, just spread out over four months or twelve.”

> **Never say:** “finance it and we’ll see what happens” · “don’t worry about the payments” · anything that hints the balance goes away.

RULE 2: YOU ARE NOT AN ADJUSTER. EVER.

Texas Insurance Code § 4102.163. A contractor may not act as a public insurance adjuster, or advertise to adjust claims, on any property where the contractor is providing or may provide contracting services. It applies even if you personally hold an adjuster license.

ILLEGAL FOR YOU	LEGAL FOR YOU
Filing the claim for them	Inspecting and photographing the roof
Negotiating with the carrier on their behalf	Preparing your own estimate
Interpreting what their policy covers	Discussing that estimate and the technical findings with the adjuster
Telling them what their claim is worth	Meeting the adjuster on site
Advertising "we handle your claim"	Explaining what you documented

> **The sentence that keeps you clean:** "You file it. I document it. What your policy covers is between you and your carrier."

RULE 3: TEXAS DOES NOT LICENSE ROOFERS.

There is no state roofing license in Texas. Saying "licensed roofer" or "state licensed" about roofing work is a false claim, and it's the claim every storm chaser makes.

> **Never say:** "licensed roofer" · "state licensed" · "licensed and bonded" (unless you can produce the bond).

> **Say instead:** "Texas doesn't license roofers, which is exactly why you should check what a company actually has. We carry $2,000,000 in liability, and I can show you the certificate right now. We've got 48 Google reviews, and we warranty our workmanship for a year."

DOOR-TO-DOOR: THE CANCELLATION RIGHT

When *we* initiate the contact at their door, the sale is a home solicitation under **Business & Commerce Code Chapter 601** and the FTC Cooling-Off Rule. The homeowner gets three business days to cancel, and we have to give them written notice of that right with the contract. It generally does not apply when the homeowner contacted us first, but we give the notice on every door-knocked deal regardless. It costs nothing and it is the difference between a signature and a complaint.

ATTORNEY REVIEW Counsel is confirming the exact Chapter 601 notice wording and when the homeowner-initiated exception applies. Until that comes back, give the notice on every deal and do not tell a homeowner they can't cancel.

CALLING RULES

- 8am to 8pm local time. Nothing outside it.
- DNC flag red in the tool means do not dial. The tool checks it for you. Look at it.
- No cold texts. Inbound and consented replies only.
- They say stop, you stop, and you mark it in the tool that minute.

FIVE ANSWERS TO HAVE MEMORIZED

THEY ASK	YOU ANSWER
"Are you licensed?"	"Texas doesn't license roofers. We're insured for $2 million and I'll show you the certificate."
"Will you handle my claim?"	"I'll document it and meet your adjuster. You file it. A contractor filing for you is illegal in Texas."
"Can you help with my deductible?"	"I can't legally, and neither can anyone else. I can point you to financing."
"Will insurance cover this?"	"That's your carrier's call, not mine. What I can tell you is what I found and what I documented."

"What's this going to cost me?"	"On a covered claim, your deductible. The scope and price come from your carrier."

If you're unsure, stop and call the office. Nobody has ever been fired here for pausing a deal to ask. People do get fired for promising something we can't legally do.